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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**REQUEST FOR JUDICIAL NOTICE
(ISO LEAVE TO FILE TAC)**

(Evid. Code, §§ 452, 453)

I. COURT RECORDS — EVIDENCE CODE § 452(D)

A. FROM THE UNDERLYING ACTION (CGC-21-594102)

- **Exhibit A:** Motion in Limine No. 17
 - **Date:** Jan. 17, 2025
 - **Relevance:** “Unknown provenance” representation establishing Position B anchor #1 of the Position A vs. Position B cross-case spine.
- **Exhibit A-2:** Defendant’s Motion in Limine No. 6 (Rosario v. Abdelhalim, CGC-21-594102)
 - **Date:** Jan. 17, 2025
 - **Relevance:** Companion in-limine application to MIL No. 17; same “unknown prove-

nance” / “not produced in discovery” position regarding the four Silent Witnesses; relevant to the Position A vs. Position B structural impossibility pleaded at TAC ¶ 51A.

- **Exhibit B:** Hearing Transcript, Feb. 18, 2025 (excerpts), at p. 141, lines 4–11
 - **Date:** Feb. 18, 2025
 - **Relevance:** Jeremy Jessup testimony confirming the Silent-Witness materials had been produced to defense counsel in August–September 2022; defense counsel’s contemporaneous “news to me” representation. Position B anchor #2.
- **Exhibit C:** Reporter’s Transcript Vol. 7, p. 213, lines 13–15
 - **Date:** Apr. 16, 2025
 - **Relevance:** Defense counsel’s “They were provided by Dolan” admission. Position B anchor #3.
- **Exhibit D:** SFPD Incident Report No. 210079556
 - **Date:** Feb. 4, 2021 (and supplemental)
 - **Relevance:** Underlying collision; identifies the four Silent Witnesses (911 audio, BWC footage, CAD log, supplemental SFPD report); references named eyewitness Justin Rosemond.
- **Exhibit E:** Judgment in CGC-21-594102
 - **Date:** Apr. 25, 2025
 - **Relevance:** Underlying judgment (presently on appeal, A173827; not final for preclusion purposes).

B. FROM THIS ACTION (CGC-25-631802)

- **Exhibit F:** Second Amended Complaint
 - **Date:** (on file)

1 – **Relevance:** Operative pleading being superseded by the proposed TAC.

2 • **Exhibit G:** Defendant’s Motion to Strike (CCP § 436)

3 – **Date:** Apr. 22, 2026

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5 – **Relevance:** Objections being cured by the proposed TAC.

6 **C. FROM COMPANION ACTION (CGC-25-631801)**

7 • **Exhibit H:** Complaint in CGC-25-631801

8 – **Relevance:** Companion independent action in equity (extrinsic fraud / fraud-on-the-
9 court).

10 • **Exhibit H-2:** Operative pleading in CGC-25-631801 (TAC-RECKLESS-DISREGARD)

11 – **Relevance:** Operative cross-case pleading establishing the Position A vs. Position B
12 cross-case spine pleaded at TAC ¶ 51A and § 0.5.

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14 **II. CSAA DENIAL LETTER — EVIDENCE CODE § 452(H)**

15 • **Exhibit I:** CSAA Denial Letter (Claim No. 1004-09-1054), signed by Sarah Rash, Claims
16 Representative

17 – **Date:** Feb. 25, 2021

18
19 – **Relevance:** Position A — written representation of “concluded investigation” issued 21
20 days after the February 4, 2021 collision; signatory Sarah Rash.

21
22 **III. STATUTES AND REGULATIONS — EVIDENCE CODE §§ 452(A),**
23 **(B)**

24 • **Exhibit J:** Bus. & Prof. Code § 17200 et seq. — **Relevance:** UCL.

25 • **Exhibit K:** Ins. Code § 790.03 — **Relevance:** Unfair claims practices (contextual; pleaded
26 solely as UCL unlawful predicate consistent with the *Moradi-Shalal* common-law carve-out).

27 • **Exhibit L:** 10 CCR § 2695.4 — **Relevance:** File and record documentation.

- 1 • **Exhibit L-2:** 10 CCR § 2695.5(b) — **Relevance:** Duty to respond to claimant communica-
2 tions within fifteen days.
- 3 • **Exhibit M:** 10 CCR § 2695.7 — **Relevance:** Thorough investigation requirement.
- 4 • **Exhibit M-2:** 10 CCR § 2695.7(b), (d), and (g) — **Relevance:** (b) accept-or-deny determi-
5 nation must follow receipt of information sufficient to make the determination; (d) decision
6 must be based on “all information reasonably available”; (g) no representation that a claim
7 will be denied without “conducting and fully documenting a thorough, fair, and objective
8 investigation.”
- 9 • **Exhibit N:** Civ. Code §§ 1709, 1710 — **Relevance:** Fraud and deceit.
- 10 • **Exhibit O:** Civ. Code § 3294 — **Relevance:** Punitive damages.
- 11 • **Exhibit P:** Civ. Code §§ 3287, 3288 — **Relevance:** Prejudgment interest.
- 12 • **Exhibit Q:** Code Civ. Proc. § 1985 — **Relevance:** Subpoena duces tecum; one of the routine
13 retrieval channels for the four Silent Witnesses available to CSAA on or before February 25,
14 2021.
- 15 • **Exhibit R:** Evid. Code § 1560 — **Relevance:** Subpoena-records compliance; complementary
16 retrieval channel for the Silent Witnesses.
- 17 • **Exhibit S:** Gov. Code § 7922.530 — **Relevance:** California Public Records Act request
18 channel for SFPD / SFDEM records (911 audio, CAD log, BWC footage, supplemental SFPD
19 report).
- 20 • **Exhibit T:** Penal Code § 832.7 — **Relevance:** Subdivision (b) channel for SFPD body-worn
21 camera footage and related peace-officer records (post-SB 1421 / 2019 reform).
- 22 • **Exhibit U:** Penal Code § 832.18 — **Relevance:** BWC custody-and-retention standards cor-
23 roborating reasonable availability of BWC footage on or before February 25, 2021.
- 24 • **Exhibit V:** Civ. Code § 1710(1), (2), and (3) (in full) — **Relevance:** Statutory predicates
25 for the First Cause of Action (intentional misrepresentation), the Fourth Cause of Action
26 (negligent misrepresentation), and the Second Cause of Action (concealment / half-truth).
- 27 • **Exhibit W:** Civ. Code §§ 2330 and 2338 — **Relevance:** Agency / ratification spine for the
28 Position A vs. Position B cross-case theory pleaded at TAC ¶¶ 6A, 27A, 51A; CSAA’s prin-

1 cipro liability for representations made by Sarah Rash, claims department personnel, retained
2 claims professionals, and panel counsel.

- 3 • **Exhibit X:** Evid. Code § 1222 — **Relevance:** Authorized-admission-by-agent rule corroborating that Position A and Position B are both statements of CSAA itself.
- 4
- 5 • **Exhibit Y:** Code Civ. Proc. § 1060 — **Relevance:** Statutory predicate for the Fifth Cause
6 of Action (Declaratory Relief); prospective preclusive declarations across CGC-21-594102,
7 CGC-25-631801, and CGC-25-631802.

9 IV. LEGAL BASIS

10 A. COURT RECORDS ARE PROPER SUBJECTS OF JUDICIAL NO- 11 TICE

12 Evidence Code § 452(d) permits judicial notice of court records. The documents listed as Exhibits
13 A through H-2 are records of the Superior Court of California, County of San Francisco.

14 B. FACTS NOT REASONABLY SUBJECT TO DISPUTE

15 Evidence Code § 452(h) permits judicial notice of facts capable of immediate and accurate deter-
16 mination by resort to sources of reasonably indisputable accuracy. The CSAA denial letter (Exhibit
17 I) is a document whose existence and contents are not reasonably subject to dispute.

18 **Sub-paragraph IV.B.1 — *Sosinsky*-anchored existence/contents framing for the SFPD Inci-**
19 **dent Report.** Plaintiff requests judicial notice of the **existence and contents** of the SFPD Incident
20 Report No. 210079556 (Exhibit D) under Evidence Code § 452(c) (official acts of legislative, ex-
21 ecutive, and judicial departments) and § 452(h) (facts not reasonably subject to dispute capable of
22 immediate and accurate determination by resort to sources of reasonably indisputable accuracy).
23 Plaintiff does **not** request judicial notice of the truth of any hearsay statement contained within
24 the Incident Report, consistent with *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–1565
25 (court takes judicial notice of existence and contents of public record but not the truth of hearsay
26 statements within it). Plaintiff requests judicial notice solely (a) that the SFPD Incident Report
27 No. 210079556 exists, (b) that on its face it references the 911 audio recording, the SFPD CAD

1 log, the body-worn camera footage of the responding officers, and Justin Rosemond as a percipient
2 witness, and (c) that those references were available to CSAA on or before February 25, 2021 by
3 inspection of the Incident Report itself. The relevance of (a)–(c) is to the inquiry-notice element
4 of the reckless-disregard scienter floor pleaded at TAC § 0.2(a).

5 **C. STATUTES AND REGULATIONS**

6 Evidence Code §§ 452(a) and (b) permit judicial notice of statutes and regulations. The statutes
7 and regulations listed as Exhibits J through Y are proper subjects of mandatory judicial notice.

8 **D. JUDICIAL NOTICE IS MANDATORY UPON PROPER REQUEST**

9 Evidence Code § 453 provides that the trial court shall take judicial notice of any matter specified
10 in Section 452 if a party requests it and gives adverse parties sufficient notice.

12 **V. CONCLUSION**

13 For the foregoing reasons, Plaintiff respectfully requests that this Court take judicial notice of the
14 documents identified above.

15
16 **Dated:** _____

17 **FRANCISCUS DYLAN ROSARIO**

18 Plaintiff, In Pro Per

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23 _____

Dated: April 28, 2026



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